



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-216 | Allison Point – Zoning Map Amendment
Date: December 9, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 12/9/2024
- Public Services Committee 12/17/2024
- Second reading 12/23/2024
- Public Services Committee 1/7/2025
- Third and final reading 1/13/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their December 2, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF AG AGRICULTURAL FOR LAND LOCATED NORTHEAST OF THE INTERSECTION OF WEST ALLISON ROAD AND WALTERSCHEID BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That the property does not currently have a City zone.

Section 3. That on December 2, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 5. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as:

A PARCEL OF LAND SITUATE IN A PORTION OF THE NORTHEAST QUARTER (NE¼) OF SECTION 7, T. 13 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING BEING MORE PARTICULARLY DESCRIBE AS FOLLOWS: BEGINNING AT THE INTERSECTION OF THE WEST LINE OF WALTERSCHEID BLVD. AND THE NORTH LINE OF WEST ALLISON ROAD A FOUND 1½" ALUMINUM CAP; THENCE N.89°22'46" W. ALONG THE SAID NORTH LINE ALUMINUM CAP; THENCE N.89°22'46" W. ALONG THE SAID NORTH LINE W. ALONG THE SAID NORTH LINE OF WEST ALLISON A DISTANCE OF 741.25 FEET TO A FOUND #5 REBAR AND POINT OF CURVATURE; THENCE CONTINUING ALONG SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 1105.92 FEET A CENTRAL ANGLE OF 16°14'11" (CHB. = N. 81°14'17" W, CHL. = 312.34 FEET) A DISTANCE (CHB. = N. 81°14'17" W, CHL. = 312.34 FEET) A DISTANCE W, CHL. = 312.34 FEET) A DISTANCE OF 313.39 FEET TO THE SOUTH EAST CORNER OF LOT 8, BLOCK 1, HARMONY POINT A SET 1½" ALUMINUM CAP STAMPED "PLS 9834"; THENCE N00°13'36" E. ALONG THE EAST LINE OF SAID LOT 8 A

DISTANCE OF PLS 9834"; THENCE N00°13'36" E. ALONG THE EAST LINE OF SAID LOT 8 A DISTANCE OF ; THENCE N00°13'36" E. ALONG THE EAST LINE OF SAID LOT 8 A DISTANCE OF E. ALONG THE EAST LINE OF SAID LOT 8 A DISTANCE OF 454.27 FEET TO A POINT ON THE EAST LINE OF LOT 14, BLOCK 1 OF SAID HARMONY POINT A FOUND 1½" ALUMINUM CAP; THENCE N. 37°21'57" E. ALONG THE SOUTHEAST LINE OF SAID LOT 14 A DISTANCE OF E. ALONG THE SOUTHEAST LINE OF SAID LOT 14 A DISTANCE OF 129.74 FEET TO THE NORTHEAST CORNER OF SAID LOT 14 A FOUND 1½" ALUMINUM CAP; THENCE N. ALUMINUM CAP; THENCE N. 89°50'55" E. A DISTANCE OF 971.57 FEET TO A POINT ON THE SAID WEST LINE OF WALTERSCHEID BLVD. A E. A DISTANCE OF 971.57 FEET TO A POINT ON THE SAID WEST LINE OF WALTERSCHEID BLVD. A FOUND ½" IRON PIPE; THENCE S.00°12'17" W. ALONG THE SAID WEST LINE A DISTANCE OF 615.56 FEET TO IRON PIPE; THENCE S.00°12'17" W. ALONG THE SAID WEST LINE A DISTANCE OF 615.56 FEET TO W. ALONG THE SAID WEST LINE A DISTANCE OF 615.56 FEET TO THE POINT OF BEGINNING. SAID PARCEL CONTAINS 14.47 ACRES MORE OR LESS.

is hereby established as AG Agricultural.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

DECEMBER 2, 2024

STAFF REPORT

FILE: UDC-24-216: Allison Pointe – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 14.47 acres of land from County A-1 to AG Agricultural.

LOCATION: Northwest of the intersection of W Allison Road and Waltersheid Blvd.

APPLICANT: John Sayers

AGENT: John Sayers

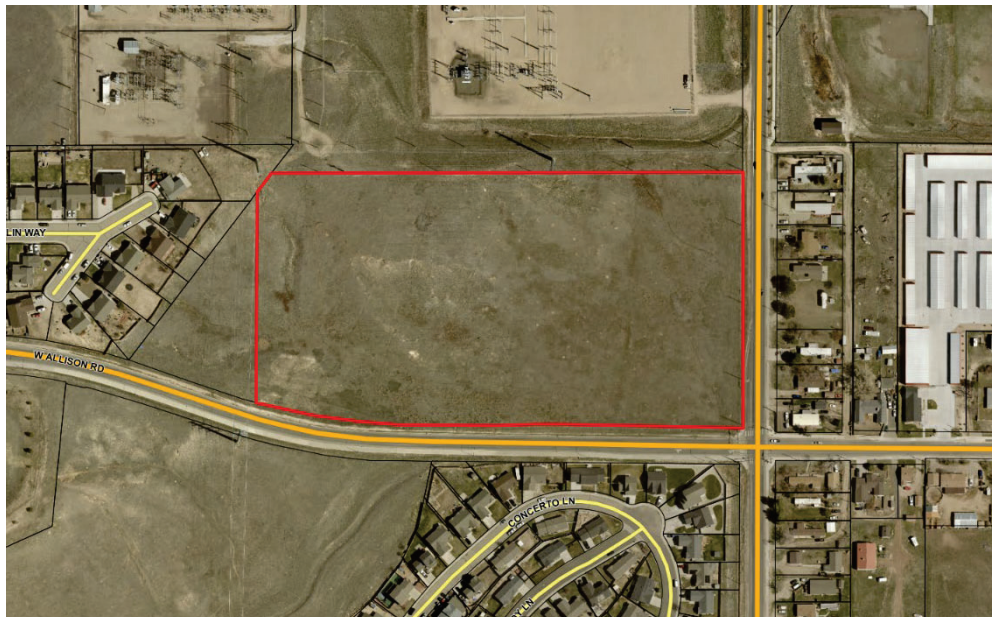
OWNER: Tru Grit Land Development LLC

ZONING: County A-1

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To give the property a City zone and allow a temporary Work Camp via Conditional Use.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of 14.47 acres of land northwest of the intersection of W Allison Road and Waltersheid Boulevard as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County A-1 to AG Agricultural for roughly 14.47 acres of land. The land is currently vacant. This parcel was annexed to the City in 1890. Since then it has had a County zone and was never given a City zone when the City and County separated. The applicant is proposing the AG zone to allow a temporary Work Camp through the Conditional Use process. If a property with County A-1 zoning was annexed to the City, the assigned zoning upon annexation would be AG Agricultural.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	County A-1	Vacant
North	Public	County A-1	Utility Station
South	Urban Residential	PUD Planned Unit Development (Ordinances 4274 and 3501)	Single-family and Vacant
East	Urban Residential	MR Medium-density Residential	Single-family and Mini-Storage
West	Mixed-use Commercial and Urban Residential	P Public and MR	Single-family and Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

While the proposed AG zone is not consistent with the land uses identified by the Future Land Use Map, the AG zone is the rough equivalent of the current County zone and would not have an adverse effect on the potential for the property to develop in accordance with the plans and policies of the comprehensive plan in the future. The AG zone is also intended to be a 'holding zone'.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The future land uses anticipated by the Comprehensive Plan for this area anticipate mixed-use commercial types of development. While the proposed AG zone is not consistent with the Future Land Use Map, the AG zone is intended to be able to be used as a 'holding zone' until future development occurs, and the proposed AG zone is consistent with the existing County zoning.

The proposed zone change **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current zone is County A-1 which, outside of City limits, allows for limited development options and is intended for lower intensity uses. Work Camps are a conditional use in the County A-1 zone. The AG zone is the most analogous City zone to the current County zone. If this parcel was to be annexed under current UDC regulations it would have been assigned the AG zone.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. Infrastructure (streets and utilities) exist in the area.

The proposed zone change **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The AG zone is intended to develop with primarily agricultural uses or to leave land in a natural state. This zone prohibits most of the typical urban-style uses. The AG zone is applicable to areas where significant natural lands or open spaces are to be protected, or areas designated Agriculture/Rural or Rural Residential by the Future Land Use Map. The AG zone is also applicable as an interim or holding zone for areas that may be further developed in the long

term, but where minimal development activity in the interim is acceptable and will not prematurely establish development patterns.

The proposed zone change **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposal which is the impetus behind this request is a Work Camp. A Work Camp is a conditional use in the County A-1 zone and the City AG zone. The proposed AG zoning is the zone most similar to the existing zoning on the property. More intense development on the property zoned AG would require a future rezoning.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Planning and Development Department Staff would like to note that if this property was to be annexed and assigned a City zone under today's code, it would have been assigned the AG zone.

The proposed zone change **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the AG zone at this location – as it would be the 'assigned zoning' equivalent to the existing County zone.

CONCLUSION:

Staff is satisfied that the application for the AG zone meets the review criteria set forth in UDC 2.2.1.(d). The AG zone is the most analogous City zone to the current County zone and would have been assigned to the property if it were to be annexed under current code requirements.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

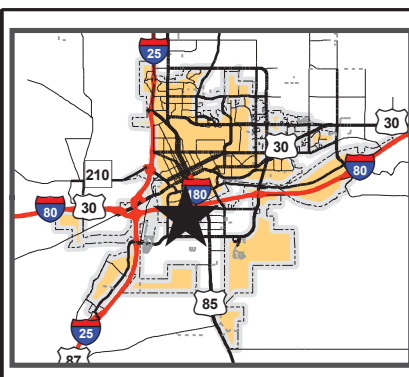
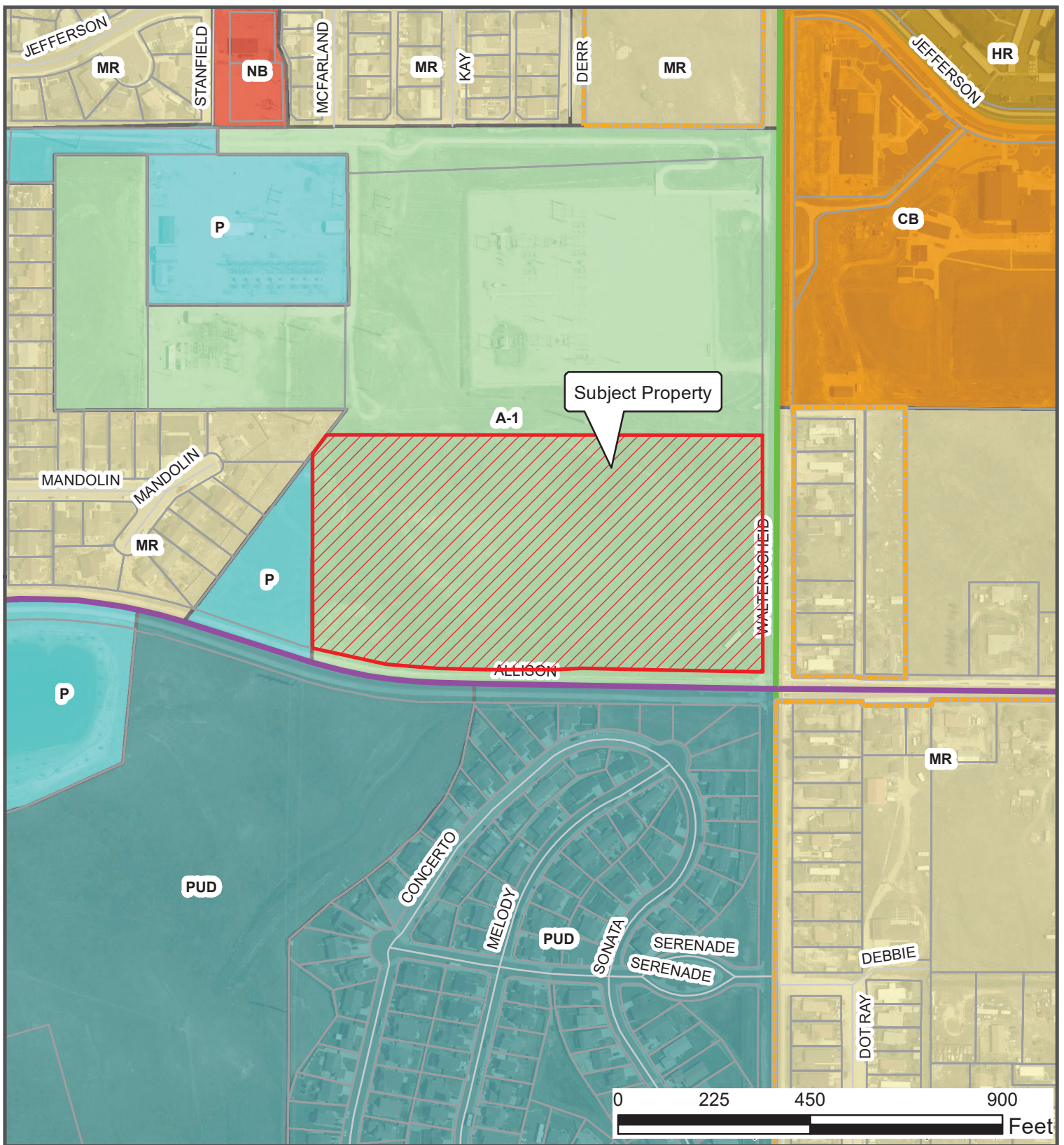
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County A-1 to AG.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Differences in uses per zone

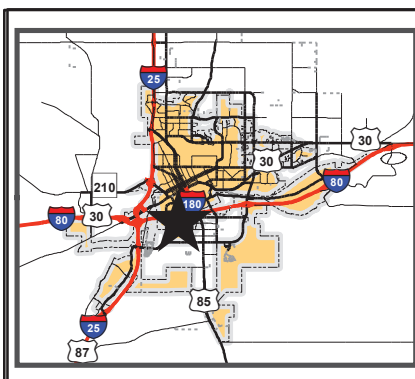
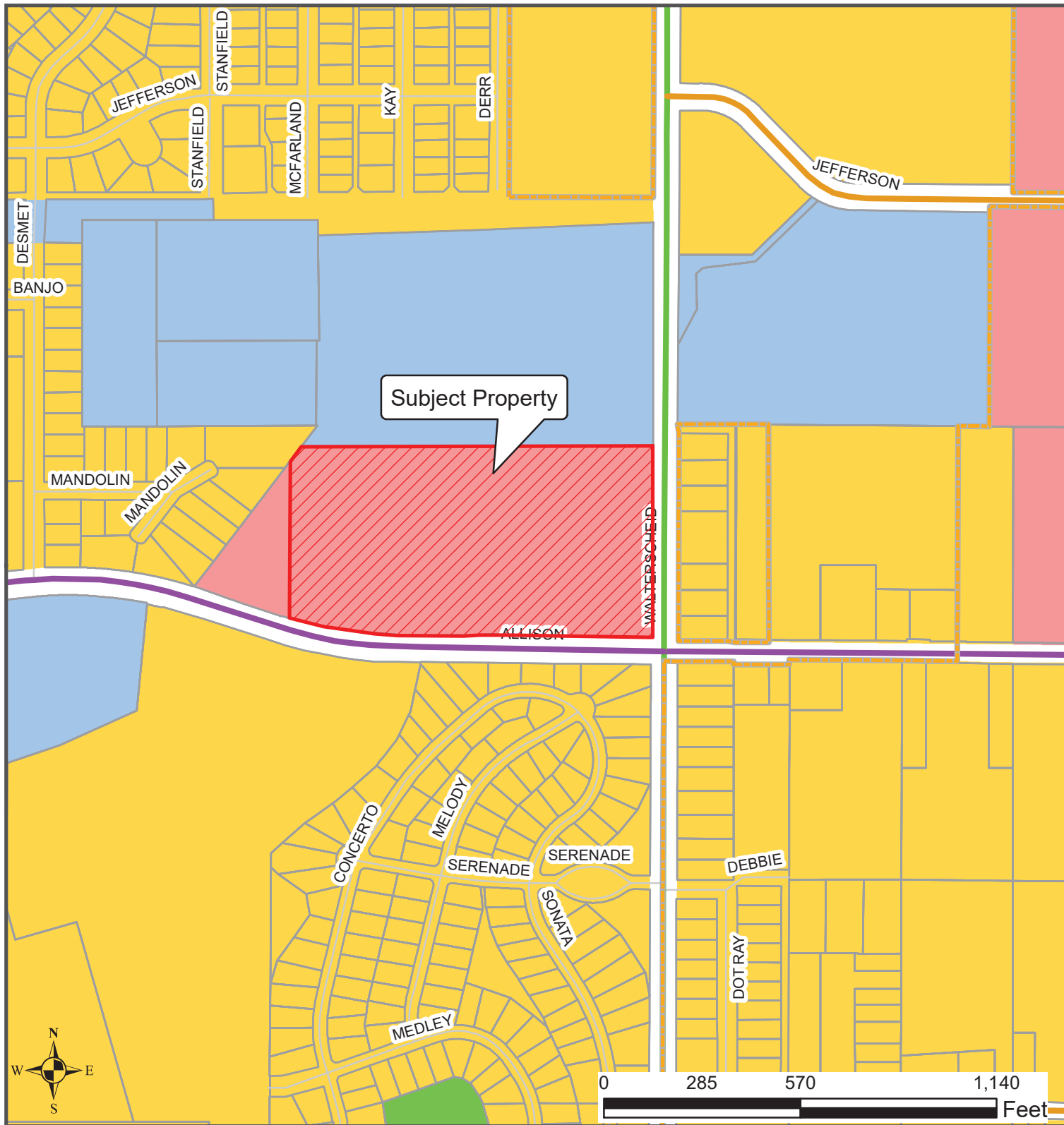


Attachment 1: Zoning Map PUDC-24-216

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-216

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



PUDC-24-216

Zoning Map Amendment

Status: Active

Submitted On: 11/12/2024

Primary Location

0 ALLISON RD
Cheyenne, WY 82007

Owner

TRU GRIT LAND DEVELOPMENT
LLC
140 WALTERSCHEID BLVD
CHEYENNE, WY 82007

Applicant

 John Sayers
 307-214-3093
 jsayers@mhbwy.com
 140 Walterscheid Blvd
Cheyenne, WY 82007

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 

Allison Pointe RV Park

Proposed Zoning* 

AG Agricultural

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



John Sayers

Nov 12, 2024

County A1 - AGRICULTURAL AND RURAL RESIDENTIAL
<i>Uses By Right</i>
Agriculture and uses incidental to an agricultural operation
Family child care home
Family child care centers
Home occupations
Single-family residential
Small Wind Energy Systems
Animal hospitals or clinics
Bed and breakfasts
Cemeteries
Churches, temples or other places of worship
Duplexes
Primary and secondary Schools
Roadside farm stands
Accessory living quarters
<i>Uses requiring Board Approval (Conditional Use)</i>
Commercial sales of agricultural related products, not including fuel or petroleum products
Work Camps
Any other similar use
Commercial stables, arenas, kennels, bird farms and show barns
Commercial nurseries and landscaping businesses

City AG - AGRICULTURAL
<i>Uses By Right</i>
Detached Dwelling
Animal Care - Kennel
Family Child Care Home (FCCH)
Lodging, Bed and Breakfast
Home occupations
General Agriculture
Limited Agriculture
Nurseries, landscaping
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Cemeteries
Family Child Care Center (FCCC)
Child Care Center (CCC)
<i>Uses requiring Board Approval (Conditional Use)</i>
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Assisted Living / Nursing Home
Animal Care – Hospital / Clinic
Entertainment, Outdoor Recreation Facility
Entertainment, Venue (1000+ maximum occupancy)
Entertainment, Amusement, Recreation—Other
Agricultural equipment or product sales
Commercial stables, arenas, and show barns
Work Camps (per UDC 5.7.10)